

SENATE JOINT RESOLUTION 657

By Massey

A RESOLUTION to approve, pursuant to Tennessee Code Annotated, Section 7-56-102 and subject to the oversight and approval of the department of transportation, the Nolensville Pike, Gallatin Pike, and Downtown corridor projects as included in the Metropolitan Government of Nashville and Davidson County's Choose How You Move transportation improvement program, as adopted by the voters on November 5, 2024.

WHEREAS, Tennessee is a leader in transportation innovation; and

WHEREAS, pursuant to the IMPROVE Act and following all required procedural steps outlined in Tennessee Code Annotated, Section 67-4-3206(b)-(f), on November 5, 2024, voters of the Metropolitan Government of Nashville and Davidson County overwhelmingly approved a sales tax surcharge to be used as a dedicated funding source for transportation improvements included in the Choose How You Move program; and

WHEREAS, the General Assembly recognizes that, pursuant to the IMPROVE Act, local government investment in transportation programs is in the public interest; and

WHEREAS, the establishment of a dedicated local funding source for transportation improvements enables the Metropolitan Government of Nashville and Davidson County to increase the competitiveness and readiness of Choose How You Move federal grant applications by providing required local match dollars; and

WHEREAS, included in the Choose How You Move program are pedestrian safety, signal improvement, service, and corridor projects to improve a public transit system, as defined in Tennessee Code Annotated, Section 67-4-3201, and to help manage congestion for safe, fast, reliable, efficient, and convenient service; and

WHEREAS, Choose How You Move corridor projects present the opportunity to drive the local economy, which will provide benefits for all Tennessee communities, rural, suburban, and urban, through increased tax revenue; and

WHEREAS, the voter-approved Choose How You Move transportation improvement program includes proposed projects to improve some of Nashville's most heavily traveled roads: the Nolensville Pike, Gallatin Pike, and Downtown corridors; and

WHEREAS, less congested Nolensville Pike, Gallatin Pike, and Downtown corridors would provide more efficient routes and additional options for drivers traveling from surrounding counties to downtown Nashville; and

WHEREAS, to address congestion and improve safety, the proposed Nolensville Pike, Gallatin Pike, and Downtown corridor projects include incorporating bus rapid transit systems; and

WHEREAS, a bus rapid transit system may establish, as needed, dedicated, clearly marked roadway spaces that improve basic street functions by organizing traffic, adding safer turn access, modernizing traffic signals, strengthening pavement for heavy vehicles, and providing predictable, reliable movement for all, whether they drive, deliver goods, or use transit, without changing the road's fundamental purpose; and

WHEREAS, pursuant to Tennessee Code Annotated, Section 7-56-102, certain bus rapid transit systems using a separate lane or right-of-way dedicated to the use of a bus rapid transit system on any state highway or state highway right-of-way is subject to the approval of the General Assembly as evidenced by the passage of a joint resolution originating in either house; and

WHEREAS, the proposed Nolensville Pike, Gallatin Pike, and Downtown corridor projects will be designed to help address Nashville's congestion and traffic; and

WHEREAS, a recent survey by Vanderbilt University found nearly half of all commuters in Nashville spend between thirty and ninety minutes in traffic each day; and

WHEREAS, another recent study by the transportation analytics company INRIX found that each year, the average commuter spends ninety-nine hours and \$1,400 on gas stopped in heavy traffic congestion; and

WHEREAS, our State's population growth and increasing vehicular travel cause serious traffic congestion near certain urban areas of Tennessee, and the inadequacy of roadway capacity and mobility has contributed to this congestion; and

WHEREAS, Tennessee is delivering other innovative methods to address congestion, including the Choice Lanes project overseen by the Department of Transportation (TDOT), of which the Metropolitan Government of Nashville and Davidson County serves as a key partner; and

WHEREAS, the Choice Lanes project will offer enhanced transit options as transit buses may use the Choice Lanes to benefit from reliable travel speed and travel time; and

WHEREAS, the Choice Lanes project and the Nolensville Pike, Gallatin Pike, and Downtown corridor projects will complement each other, providing additional and alternate routes to continue to reduce traffic and improve safety for both commuters from surrounding counties and residents of Davidson County; and

WHEREAS, pursuant to Tennessee Code Annotated, Section 7-56-102, TDOT has the authority to approve or disapprove projects on any state highway or state highway right-of-way, such as corridors with rights-of-way with state or federal highway designations; and

WHEREAS, prior to the approval of these types of projects by TDOT, pursuant to Tennessee Code Annotated, Section 7-56-102, "The commissioner of transportation shall provide written notice of any such proposed project to the speakers of the senate and the house of representatives, the chairs of the finance, ways and means committees of the senate and the

house of representatives, the chair of the transportation and safety committee of the senate, and the chair of the transportation committee of the house of representatives"; and

WHEREAS, the General Assembly recognizes that TDOT will not approve any bus rapid transit lane projects that impair future highway improvements or the safety of highway users and that the department will provide notice to the General Assembly when approving projects pursuant to Tennessee Code Annotated, Section 7-56-102; and

WHEREAS, because the General Assembly supports efforts to manage congestion and improve safety, the General Assembly approves the bus rapid transit system proposed in the Nolensville Pike, Gallatin Pike, and Downtown corridor projects, subject to the oversight of TDOT and approval of the governing body of the Metropolitan Government of Nashville and Davidson County and the requirements of Tennessee Code Annotated, Section 7-56-102; and

WHEREAS, because the General Assembly supports the responsible use of federal funding for infrastructure, the General Assembly provides its approval through this resolution to allow the Metropolitan Government of Nashville and Davidson County to be competitive for federal grants, benefitting all Middle Tennesseans; and

WHEREAS, Choose How You Move corridor projects will be competing for federal funding on behalf of Tennessee, and supportive alignment across the General Assembly, TDOT, and the Metropolitan Government of Nashville and Davidson County is a fundamental requirement for grant readiness and competitiveness; and

WHEREAS, the General Assembly recognizes that the Nolensville Pike, Gallatin Pike, and Downtown corridor projects may serve as examples for future corridor improvement projects in Nashville, and if the projects are satisfactory, then the General Assembly may approve the additional voter-approved corridor projects included in the transportation improvement plan adopted on November 5, 2024, subject to the oversight of TDOT and

approval of the Metropolitan Government of Nashville and Davidson County and TDOT; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that because we support efforts to manage traffic congestion, improve safety, and create opportunities for Tennessee to receive federal infrastructure funding, pursuant to the requirements of Tennessee Code Annotated, Section 7-56-102, and subject to the oversight of TDOT and approval of the Metropolitan Government of Nashville and Davidson County and TDOT, we approve bus rapid transit systems using a separate lane, or separate right-of-way, dedicated to the use of a bus rapid transit system on a state highway or state highway right-of-way as proposed in the Nolensville Pike, Gallatin Pike, and Downtown corridor projects included in the Metropolitan Government of Nashville and Davidson County's Choose How You Move transportation improvement program, adopted by the voters of the Metropolitan Government of Nashville and Davidson County on November 5, 2024.

BE IT FURTHER RESOLVED, that an appropriate copy of this resolution be prepared for presentation with this final clause omitted from such copy and upon proper request made to the appropriate clerk, the language appearing immediately following the State seal appear without House or Senate designation.